



File No.: EXP202300934

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On December 25, 2022, a complaint was filed with the Spanish Agency for Data Protection against TELEFÓNICA MÓVILES ESPAÑA, S.A.U. with NIF A78923125 (hereinafter, the complained party or TME).

The reasons for the complaint are as follows:

The complainant states that they have transferred their personal data to a debt collection company to claim an outstanding debt, which they assert is non-existent. Specifically, they report having received calls on December 14 and 23, 2022. Along with their complaint, they provide a letter from ISGF dated December 20, 2022, in which they respond to the complaint and a document from the complained party, dated October 29, 2018, indicating that they have verified that the line for which an amount was being claimed has been canceled, proceeding to refund the improperly charged invoice. They state that the claimed amount corresponds to invoice number ***FACTURA.1, which was refunded following the complaint from October 2018.

Along with the notification, the following is provided:

- Letter from TME, dated October 29, 2018, informing that they will refund the billed amount as the lines have been canceled.
- Letter from ISGF, dated December 20, 2022, informing that they have not included the complainant's data in any asset solvency file, which would be TME's responsibility.
- WhatsApp chat between agents of the complained party and the complainant in which they inform them, on December 23, 2022, that amounts improperly billed in 2018 have been refunded but that they owed 58.86 euros.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party/ALIAS, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on February 6, 2023, as stated in the certificate in the file.

On March 2, 2023, a response was received by this Agency indicating the following:

"It is important to highlight that the matter referred to in the complaint by Ms. A.A.A. does not consist of a supposed transfer of data to the collection company. In this sense, as highlighted in the responses to frequently asked questions available on the Agency's website, '...collection companies are companies that provide services to third entities and by virtue of that service need to know personal data of the clients of the company that has contracted them. This access to the data cannot be considered a transfer or communication of personal data, nor does it require the consent of the data subjects to process them since the processing carried out by a collection company derives from the service provided to the data controller.'

The communication sent to Ms. A.A.A. in response to the referenced complaint is attached as annex document No. 1. (the communication explains that there has been no data transfer but rather the provision of a service)

Ms. A.A.A. is not listed in credit bureaus, at the request of my represented party.

THIRD: On March 7, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Data Processing

The GDPR addresses in Article 5 the principles governing the processing of data, which states:

"1. Personal data shall be:

- a) processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency');
- b) [...] ('purpose limitation');
- c) [...] ('data minimization');
- d) accurate and, where necessary, kept up to date; all reasonable steps must be taken to ensure that personal data that is inaccurate is erased or rectified without delay ('accuracy');
- e) [...] ('storage limitation');
- f) [...] ('integrity and confidentiality').

2. The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it ('accountability')."

Article 6 of the GDPR, "Lawfulness of processing," establishes:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

2. Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation with respect to processing under paragraph 1, points c) and e), setting more precise specific requirements for processing and other measures that ensure lawful and fair processing, including other specific processing situations under Chapter IX.

3. The basis for processing referred to in paragraph 1, points c) and e), shall be established by:

- a) Union law, or
- b) the law of the Member States applicable to the data controller.

The purpose of the processing shall be determined in that legal basis or, in relation to the processing referred to in paragraph 1, point e), shall be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, including: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures for processing, including measures to ensure lawful and fair processing, such as those relating to other specific processing situations under Chapter IX. Union law or the law of the Member States shall pursue a public interest objective and be proportionate to the legitimate aim pursued.

4. When processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union law or the law of the Member States that constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives set out in Article 23, paragraph 1, the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:

- a) any connection between the purposes for which the personal data have been collected and the purposes of the intended further processing;
- b) the context in which the personal data have been collected, in particular regarding the relationship between the data subjects and the data controller;
- c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data relating to criminal convictions and offenses, in accordance with Article 10;
- d) the possible consequences of the intended further processing for the data subjects;
- e) the existence of appropriate safeguards, which may include encryption or pseudonymization.”

III

Data Controller and Processor

Article 4 of the GDPR, points 7 and 8, specifies what is to be understood by data controller and processor. Thus, we have:

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“7) ‘data controller’ or ‘controller’ means the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States;

8) ‘data processor’ or ‘processor’ means the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller;...”

In short, the data controller is the natural or legal person or public authority that decides on the processing of personal data, determining the purposes and means of such processing.

For its part, the data processor is the natural or legal person, public authority, service, or other body that provides a service to the controller that involves the processing of personal data on behalf of the controller.

In this sense, the controller is the one who decides the “why” and the “how” regarding personal data, while the processor is the one who carries out the processing on behalf of the controller.

The role of the data processor in the GDPR is defined in Article 28, which establishes the requirements

that must be met regarding data protection:

1. When processing is to be carried out on behalf of a data controller, the controller shall only choose a processor that offers sufficient guarantees to implement appropriate technical and organizational measures, so that the processing will be in compliance with the requirements of this Regulation and will ensure the protection of the rights of the data subject.

2. The data processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thus giving the controller the opportunity to object to such changes.

3. The processing by the processor shall be governed by a contract or other legal act under the law of the Union or of the Member States, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:

a) shall process the personal data only on documented instructions from the controller, including with regard to the transfers of personal data to a third country or an international organization, unless required to do so by Union or Member State law applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement.

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prior to processing, unless such law prohibits it for significant reasons of public interest;

b) will ensure that individuals authorized to process personal data have committed to respect confidentiality or are subject to a statutory obligation of confidentiality;

c) will take all necessary measures in accordance with Article 32;

d) will respect the conditions set out in paragraphs 2 and 4 for engaging another processor;

e) will assist the controller, taking into account the nature of the processing, through appropriate technical and organizational measures, where possible, so that the controller can fulfill its obligation to respond to requests aimed at exercising the rights of the data subjects established in Chapter III;

f) will help the controller ensure compliance with the obligations established in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;

g) at the controller's choice, will delete or return all personal data once the provision of processing services has ended, and will delete existing copies unless the retention of personal data is required by Union or Member State law;

h) will make available to the controller all necessary information to demonstrate compliance with the obligations set out in this article, as well as to enable and contribute to audits, including inspections, by the controller or another auditor authorized by the controller.

In relation to the provisions of letter h) of the first paragraph, the processor will immediately inform the controller if, in its opinion, an instruction infringes this Regulation or other data protection provisions of the Union or Member States.

4. When a processor engages another processor to carry out specific processing activities on behalf of the controller, the same data protection obligations as those stipulated in the contract or other legal act between the controller and the processor referred to in paragraph 3 will be imposed on this other processor, by means of a contract or other legal act established under Union or Member State law, in particular the provision of sufficient guarantees for the application of appropriate technical and organizational measures so that the processing is in compliance with the provisions of this Regulation. If that other processor fails to fulfill its data protection obligations, the initial processor will remain fully liable to the controller for compliance with the obligations of the other processor. (...)

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These specific obligations may be supervised by data protection authorities, without prejudice to the oversight that may be carried out regarding compliance with the GDPR or the LOPDGDD by the controller or the processor.

In the case at hand, ISGF is the processor of the party being claimed for debt recovery.

It is necessary to analyze the conduct allegedly contrary to data protection regulations that the claimant refers to in their complaint, in order to determine whether the data processing by TME has been compliant with the GDPR.

The claimant specifies the allegedly infringing conduct attributed to the respondent in the transfer of their personal data related to a debt that, in their view, was canceled by the respondent in 2018.

The analysis of the documentation in the file and the statements made by the respondent and the claimant reveal that the processing carried out by the former of the personal data of the latter was respectful of the principles of lawfulness (Article 5.1.a, GDPR) and accuracy (Article 5.1.d, GDPR). In the WhatsApp conversations, the claimant is informed that, from the invoice of November 2018, which amounts to (...) euros, (...) euros must be deducted, leaving an outstanding payment of (...) euros, the amount claimed by the processor.

It is therefore concluded that the processing of the claimant's personal data carried out by the respondent was respectful of the principle of accuracy.

Thus, neither the claim for the debt attributed to the claimant violated the principle of accuracy nor was the processing of the data by the respondent for that purpose contrary to the principle of lawfulness of processing.

Regarding the processing of the claimant's personal data carried out by the debt collection agency and whether this processing is in accordance with personal data protection regulations, the following considerations are made:

The processing of the claimant's data carried out by the debt collection agency for the purpose of demanding payment of an existing debt falls within what was necessary to fulfill the obligations arising from the contract that the debt collection agency had entered into with the assignee, so that the extrajudicial demand to the claimant for payment of the debt was covered by Article 6 of the GDPR. Consequently, there is no indication of a violation of data protection regulations in the payment demands that the debt collection agency, acting as the processor of the assignee of the credit, directed to the claimant.

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Conclusion

In the case analyzed, there are no elements in the file that constitute evidence of an alleged violation of the GDPR, nor circumstantial evidence that undermines the presumption of innocence of the entities involved. Consequently, the preliminary investigation proceedings must be archived.

In accordance with the above, the Director of the Spanish Agency for Data Protection hereby AGREES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to TELEFÓNICA MÓVILES ESPAÑA, S.A.U., and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in

accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Court of the Audiencia Nacional, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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